
Appeal Decision

Site visit made on 21 July 2026 by Kim Vo MPlan

Decision by John Morrison BA (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 18 August 2026

Appeal Ref: 6008539

Land Adjacent to Fulwood, School Road, Bagnall ST9 9JP

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Mr. B. Oliver against the decision of Staffordshire Moorlands District Council.
 - The application Ref is SMD/2025/0197.
 - The development proposed is for a bungalow with garage, 3 bedrooms, 2 bathrooms, kitchen, 2 reception rooms.
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Decision

1. The appeal is dismissed.

Appeal Procedure and Preliminary Matters

2. The site visit was undertaken by a representative of the Inspector whose recommendation is set out below and to which the Inspector has had regard before deciding the appeal scheme, which seeks outline planning permission with all other matters reserved.
3. In regard to the Council's Green Belt assessment, Policy GB6 of the most recent iteration of the National Planning Policy Framework (the Framework) refers to the control of development in the Green Belt, furthered by Policy GB7. Much like the previous iteration of the Framework and its treatment of development on grey belt land, Policy GB7 1.g. reflects the relevant stance on inappropriate development, making not fundamental changes in regard to what grey belt land is and the specific criteria which a successful scheme thereon would need to satisfy. I therefore see no reason to either disagree with or cause the Council to revisit their assessment on Green Belt matters. Paragraph 5 of Policy S5 explains that it would not apply to development proposals in the Green Belt.
4. Changes have been made in regard to heritage matters with specific regard to the degrees of harm. That said, and in regard to the main issue of the appeal, the actions of finding harm to a designated heritage asset is not materially different from the previous iteration of the Framework. The stance and thus mechanisms of paragraph 11 of the previous Framework are no longer relevant. However, the benefits of the appeal scheme have nonetheless been taken account of in the consideration of the main issue. I am therefore satisfied that I can proceed without further consultation with the main parties since, with this and the above in mind, their respective cases would not be prejudiced.

Main Issue

5. The main issue is the effect of the proposal on the character and appearance of the area, with specific regard to the setting of the Bagnall Conservation Area (CA).

Reasons for the Recommendation

6. The appeal site relates to a vacant plot currently comprised of overgrown grassland. There is an existing timber gated access to the front, and it is bounded by low stone walls and post and wire fencing. It is located at the edge of Bagnall village, adjoining a detached bungalow at Fulwood, which forms part of a row with three other large, two storey detached late 20th century dwellings to this side of School Road. It is outside of, but borders the CA boundary, whose special character largely derives from the historic pattern of farm closes, their field boundaries, holloways and footpaths, which are characteristic of the early 17th century settlement in the Moorlands.
7. The appeal site faces an area of important green open space, as identified by the Bagnall Conservation Area Appraisal (BCAA). Whilst outside of the CA, its undeveloped appearance and position at the edge of the village, forms part of the transitional landscape between the surrounding fields and this historic settlement. In particular, when travelling northbound on School Road towards the heart of the village, the appeal site, together with the adjacent green space, contributes to an attractive and distinctly rural gateway to the village. In doing so, it reinforces the pastoral character that is integral to the significance and setting of the CA, making a positive contribution to the character and appearance of the area.
8. The BCAA details how modern development has robbed the western arm of the CA much of its rural character. Whilst the proposal comprises only one dwelling, it would extend development further south towards the fork in the road and increase the enclosure of the adjacent green space. Consequently, despite its relatively modest plot size and that it might seem logical in the ordinary street scene continuation sense, it would result in further encroachment into the rural landscape, a process that has already occurred through the construction of the adjacent 20th century row of dwellings. This would undermine the village's historic settlement pattern as a small community within an otherwise fine rural setting.
9. It would also erode the transitional character currently provided by the undeveloped appearance of the appeal site, on the northbound entrance to the village on School Road. Development within the appeal site would also interrupt the sweeping views out across the wider fields that are currently enjoyed from the adjacent green space. As a result, the proposal would diminish the rural and verdant qualities that contribute both to the approach into the village and to the public views experienced from the green space, thereby reducing the sense of the CA's connection with the surrounding countryside.
10. For these reasons, the proposal would result in unacceptable harm to the character and appearance of the area which would extend to the setting and thus significance of the CA. Substantial weight should be given to the conservation of heritage assets irrespective of the degree of harm thereto. Any harm to a designated heritage asset will be a matter of considerable importance and weight. In such circumstances, the harm should be weighed against the proposal's public benefits.

11. The proposal would contribute to the districts and local housing supply, giving more choice and mix to the local market, within the context of an identified housing shortfall. However, as only one additional dwelling would be delivered, the weight to be attached to this benefit is moderate. The proposal would generate limited economic benefits during construction and from the occupation of the dwelling, potentially adding to the local economy through business expenditure and investment. However, given their temporary nature and modest scale, I attach moderate weight to these benefits. Some of which would be tenuously public.
12. The proposal would provide a self-build dwelling, suited to the appellant's living needs during retirement, but this would be a private benefit, and I am not aware that self-build dwellings are under supplied. This would therefore carry limited weight. The appellant also states the proposal would make efficient use of land in a sustainable location. However, in doing so, it would result in harm to the character and appearance of the area and to the setting of the CA. Therefore, I give this public benefit only moderate weight.
13. Additionally, some environmental benefits could be achieved, including a 10% biodiversity net gain. However, I have no details as to the extent of any landscaping or biodiversity enhancements and so this benefit would attract only limited weight. This may also be linked to a statutory requirement in any event. Therefore, the proposal would not provide sufficient public benefits that would outweigh the harm that has been found.
14. Consequently, the proposal would conflict with Policies SS 9, SS 10, H 1, DC 1, DC 2 and DC 3 of the Staffordshire Moorlands Local Plan 2020. Together, and amongst other things, these policies seek to ensure that development reflects and enhances the village's special character and heritage by conserving, protecting and enhancing heritage assets, their settings, and the historic character of the village. To conserve and enhance the quality of the countryside, avoid the extension of ribbon development, be well designed and reinforce local distinctiveness, and resist development that would have a significant adverse impact on the character or setting of a settlement, or on important views into and out of it.

Other Matters

15. Whilst the proposal would not constitute inappropriate development in the Green Belt due to the appeal site comprising grey belt land, that finding does not in itself justify the grant of planning permission, nor does it override the identified harm. Appendix C of the Staffordshire Moorlands Green Belt Study identified the appeal site as a potentially suitable housing site. However, the study is over ten years old and carries only limited weight, given that it was an exploratory assessment with no formal status within the adopted development plan.
16. I have not been provided with any details of the historic refusals at the appeal site. In any case, I have assessed the appeal scheme on its own planning merits and in regard to its own context. Any concerns regarding the Council's assessment of the application and them assuming details regarding matters that are reserved, should be taken up with them directly and are not for me to resolve here.
17. The imposition of planning conditions to secure design and landscaping details, self-build occupancy, and construction management, drainage, access and highway requirements, would not reasonably overcome or address the identified

harm which is based around the principle of the development of the site for a single dwelling.

Conclusion and Recommendation

18. For the reasons given above, the proposal would conflict with the development plan and material considerations, including the approach of the Framework, do not indicate a decision should be made other than in accordance therewith. I therefore recommend the appeal is dismissed.

Kim Vo

APPEAL PLANNING OFFICER

Inspector's Decision

19. I have considered all the submitted evidence and my representative's report and on that basis the appeal is dismissed.

John Morrison

INSPECTOR